



COMMISSION FOR CONCILIATION, MEDIATION & ARBITRATION

Revolutionising Workplace Relations

WECT24486-25

Date: 28 January 2026

Email address: wilburmat@gmail.com

Dear Sir,

We confirm receipt of your correspondence and have noted the contents thereof.

Consistent with the standard operating procedures of the CCMA we have afforded commissioner Ngwane an opportunity to respond to your allegations and therefore our response is in consideration of both your complaint and her response.

We note that the matter was scheduled for conciliation before the commissioner and that conciliation is a process that is off the record and without prejudice to the parties.

With regards to your allegation that the commissioner prejudged the matter, the commissioner denies your allegation and stated that she merely established the true nature of the dispute based on your submission and she is legally obliged to do so.

In relation to your complaint about the commissioner having asked you to either use google maps or ask at the CCMA front desk of the Labour Court, the commissioner submits that she has indeed made the suggestion not with the intention to offend you or was being mischievous, she merely did so as she herself does not know where the Labour Court of Cape Town is located as she is a commissioner from Johannesburg and not familiar with Cape Town.

In relation to your allegation about the misdirection of jurisdiction and laws, the commissioner confirms that she told you that because your dispute is that of protective disclosure or automatically unfair dismissal, in both instances the CCMA lacks jurisdiction to arbitrate such disputes and this does not constitute bias as the commissioner is duty bound to explain the next forum to the parties.

CCMA Head Office:

Call Center Tel: 0861 16 16 16 - 28 Harrison Street, Johannesburg, 2001 - HO Reception Tel: (011) 377 6600

Web: www.ccma.org.za - e-mail: ho@ccma.org.za - Fraud Hotline: 0860 666 348

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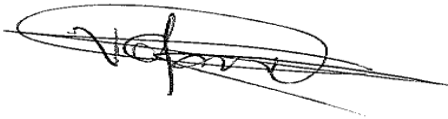
We further note with concern your confirmation that you have an audio recording of the process as that is contrary to how the parties should conduct themselves in the conciliation process. Conciliation is an off the record process and nobody is allowed to record the process, including commissioners and we humbly urge you not to do that again as parties are only allowed to record the arbitration proceedings.

Kindly be advised that the conciliation process could not be set aside once conducted, the next step is either arbitration or referral to the Labour Court and in view of the nature of your dispute, we can confirm that the CCMA lacks jurisdiction to arbitrate your dispute as correctly pointed out by the commissioner.

We request that you consider approaching the Labour Court for the referral of your dispute, noting that you have ninety (90) days to do so since 09 January 2026 and if you miss the deadline the Labour Court will ask you to apply for the condonation of your late application.

We trust that the above meets your approval.

Best regards



Vusumzi Landu

Provincial Senior Commissioner- Western Cape Region

Email address: vusumzil@ccma.org.za

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